

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 9/04/2026 10:00 AM

#	Case Name	Tentative
1	Marriot Hotel Services, LLC vs. RingCentral, Inc. 30-2024-01429620-CU-BC-CJC	Motion to Seal Exhibits Plaintiff, Marriott Hotel Services, LLC's unopposed motion to seal documents filed in support of defendant's motion for summary judgment is GRANTED. (Cal. Rules of Court, rule 2.551.) The exhibits 16-20, 22, and 23 to the declaration of Jonathan Turner (ROA 274) are ORDERED sealed. The privacy interests of plaintiff's confidential financial and proprietary information overcome the public's interest in access to the records. Disclosure of the information would prejudice the plaintiff's business interests. The proposed order is narrowly tailored to sealing only those confidential documents containing sensitive financial and proprietary information. There is

		no other less restrictive means of protecting the privacy interests involved. Clerk to give notice.
2	The Irvine Company LLC vs. Hacatoryan Corporation 30-2024-01418952-CU-BC-CJC	Motion to Compel Reference and to Appoint Referee Plaintiff The Irvine Company, LLC's Motion to Compel Reference and to Appoint a Referee is DENIED. The Court overrules Defendants' objection to Kroll's declaration and exhibit 1 to the declaration. (See <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218-219.) Plaintiff waived its right to compel reference under the lease by participating in litigation for 22 months and presenting no explanation for the delay. (See <i>Hofer v. Boladian</i> (2025) 111 Cal.App.5th 1, 13 ["Unexplained delay in seeking arbitration, while proceeding with litigation in court without mentioning or seeking to preserve the right to arbitrate, constitutes powerful evidence of the relinquishment and abandonment of the right to arbitrate—including delays comparable to the delay in this case"].) Clerk to give notice.
3	Asmar vs. Alphamotive Motors, LLC 30-2024-01395887-CU-BC-CJC	Motion to Set Aside Entry of Default The motion to set aside default of defendants Jean Pierre Castro and Byron Castro is DENIED. Default was entered against both defendants on 7/2/2025. The motion was filed on 5/28/2026, after the six-month cutoff in Code of Civil Procedure section 473, subdivision (b). Thus, defendants must establish equitable grounds for relief, including extrinsic fraud or mistake. (<i>Kramer v. Traditional Escrow, Inc.</i> (2020) 56 Cal.App.5th 13, 29 (<i>Kramer</i>).) Equitable relief may be given only in exceptional circumstances, and a court's equitable power is narrower than its power under section 473. (<i>Rappleveya v. Campbell</i> (1994) 8 Cal.4th 975, 982, 985.) Defendants declare they retained attorney Dan Miller to represent them in the action and paid him for legal services, believing he would represent all named defendants. However, Miller filed an answer only on behalf of defendant Alphamotive Motors, LLC. Defendants present no documentary evidence supporting their